

		was filed on January 15, 2026. Once Cross-Complainants realized their mistake, the cross-complaint was dismissed in March 2026. Only two months have passed before dismissal, which does not tend to show that Cross-Complainants were trying to use the cross-complaint as a means for harassment, unnecessary delay, or to thwart competition. For these reasons, the motion is DENIED. Cross-Complainants to give notice.
8	Hamidi vs. Gordonstone & Tiles, Inc.	OFF CALENDAR
9	Mills vs. Nexgen Air Conditioning and Heating, LLC	CONTINUED TO 9/9/26
10	Rodriguez vs. American Honda Motor CO., INC	TENTATIVE RULING: For the reasons set forth below, the Motion to Tax Costs brought by Defendant American Honda Motor Co., Inc. is GRANTED in part. The Court will tax \$89.50 in costs incurred after March 19, 2026, from the Memorandum of Costs filed by Plaintiff Robert Andrew Rodriguez. “[A] prevailing party is entitled as a matter of right to recover costs in any action or proceeding.” (Code Civ. Proc., § 1032, subd. (b).) Additionally, a “prevailing party” includes “the party with a net monetary recovery....” (Code Civ. Proc., § 1032, sub. (a)(4).) In addition to the above, pursuant to Civil Code section 1794, subdivision (d), a prevailing buyer in a Song-Beverly action “shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses...determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code, § 1794, subd. (d).) There is no dispute that Plaintiff is the prevailing party pursuant to the accepted section 998 Offer. (Declaration of Ashleigh K. Gideon (“Gideon Decl.”), ¶¶ 2-3, Ex. A [998 Offer, ¶ 2: “[Defendant] will also pay Plaintiff’s statutory costs and expenses under California Civil Code section 1794(d).... Plaintiff will be considered the prevailing party.”].)